

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400574	CANALES vs ULTRA SHINE CA LLC	MOTION TO BE RELIEVED AS COUNSEL FOR ULTRA SHINE, INC.,

Tentative Ruling:

The unopposed motion to be relieved as counsel of record is denied.

Analysis:

The declaration states that “our office attempted contact” with the client, “our office” received no response, and “our office” conducted a search. It appears that the declarant lacks personal knowledge of those facts. Moreover, the medium by which those attempts were made is vague. Paragraph 4 of the declaration is blank. The proposed order includes a telephone number for the client that is not supported by the declaration. The proposed order is blank at paragraphs 5 and 7.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400574	CANALES vs ULTRA SHINE CA LLC	MOTION TO BE RELIEVED AS COUNSEL FOR ULTRA SHINE CA LLC

Tentative Ruling:

Although defense counsel reserved hearings for motions to be relieved regarding both Ultra Shine CA, LLC, and Ultra Shine, LLC, the documents filed by counsel are all for Ultra Shine CA. No motion has been filed regarding Ultra Shine.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405011	OCHOA vs CITY OF RIVERSIDE	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

The defendants’ request for judicial notice is denied.

The motion for leave to amend is denied.

Analysis:

The defendants’ request for judicial notice is irrelevant to the Court’s analysis and is denied on that basis.

Estrada states that the decedent died “with a trust” and no probate estate was opened. She does not state whether the trust was inter vivos or testamentary, whether she is the trustee of the trust, or whether she is a beneficiary of the trust. Nor does she explain how the cause of action became an asset of the trust. (Cf. Code Civ. Proc. § 377.32, subd. (a)(4) [“[i]f the decedent’s estate was administered, a copy of the final order showing the distribution of the decedent’s cause of action to the successor in interest”].) The amended